

25AVCV00440 25AVCV00440

County: los-angeles

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Case Number: 25AVCV00440 Hearing Date: June 23, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MARLENE MAINELLA, an individual,

Plaintiff,

v.

BABY STEPS INFANT DEVELOPMENT PROGRAM, a California Limited Liability Company, and DOES 1 through 50,
inclusive

Defendants.

Case Number 25AVCV00440

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

June 23, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an employment case regarding an alleged wrongful termination and discrimination. Plaintiff Marlene Mainella ("Plaintiff") alleges that on August 16, 2023, after returning from medical leave, she was instructed by her supervisors to review a letter emailed to her on July 26, 2023. The letter informed Plaintiff her employment had been terminated by Defendant Baby Steps Infant Development Program ("Defendant"). Plaintiff further alleges the letter stated the grounds of her termination were due to lack of communication and failure to provide medical documentation, even though she communicated directly with her supervisors.

On September 22, 2025, Defendant filed an Answer.

On February 13, 2026, Defendant filed four motions: (1) Motion to Compel Plaintiff Marlene Mainella's Further Responses to Requests to Form Interrogatories – Employment Law; (2) Motion to Compel Plaintiff Marlene Mainella's Further Responses to Special Interrogatories, Set One; (3) Motion to Compel Plaintiff Marlene Mainella's Further Responses to Requests for Production of Documents, Set One; and (4) Motion to Compel Plaintiff Marlene Mainella's Responses to Requests for Admission, Set One.

On June 16, 2026, Defendant filed an Informal Discovery Conference form.

Plaintiff has not filed an opposition to any of the motions.

II. Interrogatories

Standard for Compelling Further Responses to Interrogatories – Code of Civil Procedure §2030.300 provides that a propounding party may bring a motion to compel further responses to interrogatories, where the propounding deems any of the following: (1) An answer to a particular interrogatory is evasive or incomplete, (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or (3) An objection to an interrogatory is without merit or too general. (Code Civ. Proc. §2030.300(a).)

Meet and Confer Requirement – A motion compelling further responses to Interrogatories must be accompanied by a meet and confer declaration. (Code Civ. Proc. §2030.300(b).)

Defendant's counsel states he met and conferred with opposing counsel via telephone on December 19, 2025, regarding Plaintiff's deficient responses. (Malter Decl., ¶ 7.) On December 22, 2025, Mr. Malter emailed opposing counsel regarding said conference and referenced their agreement by which Plaintiff would serve code-compliant supplemental responses on or before December 24. (Id., ¶ 8, Ex. I.) Opposing counsel responses, stating Plaintiff would serve supplemental responses no later than January 7, 2026. (Id.)

Plaintiff did not serve responses by the extended deadline; Defendant's counsel emailed opposing counsel on January 9, 2026, and communicated Defendant's right to file a motion to compel if no response was provided by January 12. (Id., ¶ 11, Ex. I.) Opposing counsel responses that Plaintiff was working on her responses and would serve them soon but could not guarantee by January 12. (Id.)

Defendant's counsel reached out again on January 14 and January 21 after not receiving the responses and unilaterally offered to extend the deadline to January 28, 2026. (Id., ¶¶ 12-13.) Plaintiff failed to serve responses by January 28. (Id., ¶ 15.)

From the provided timeline and Defendant's counsel's declaration, the Court notes that this requirement has been met. (Malter Decl., Exhibit I.)

Separate Statement Requirement – Cal. Rules of Court, Rule 3.1345 requires any motion involving the content of a discovery request or the responses to such request, including to compel further responses to interrogatories, be accompanied by a separate statement. (Cal. Rules of Court, Rule 3.1345 (a)(2). Such a statement must “be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Cal. Rules of Court, Rule 3.1345(c).)

Code of Civil Procedure gives the courts the authority to allow a concise outline of the discovery request and each response in dispute instead of a separate statement. (Code Civ. Proc. §2030.300(b)(2).)

The Court notes that Defendant has provided a separate statement for their motions to Compel Plaintiff Marlene Mainella's Further Responses to Form Interrogatories – Employment Law and Special Interrogatories. (Separate Statement of Issues Regarding Motion to Compel Answers and Responses to Form Interrogatories – Employment Law, Separate Statement of Issues Regarding Motion to Compel Answers and Responses to Special Interrogatories.)

i. Application - Form Interrogatories

Defendant requests that the Court order Plaintiff to provide further responses to Form Interrogatories – Employment Law (“FROGs”) within 14 days of the hearing. (Motion to Compel FROGs, Page 2.)

Here, Defendant served Plaintiff with its FROGs on October 8, 2025. (Motion to Compel FROGs, Page 3; Malter Decl., ¶ 4.) In dispute are Form Interrogatories Nos. 200.1-200.4, 200.6, 202.1-202.2, 204.1-204.3, 204.5-204.6, 207.2, 208.1, 209.1, 210.1-210.6, 212.1-212.7, 213.1-213.2, 215.1-215.2, & 217.1.

Plaintiff has not filed an opposition.

FROGs 200.1 and 200.2 request that Plaintiff contend that her employment was either “at will” or not and seek further information if answered affirmatively. FROGs 200.3 and 200.4 seek information about whether the employment relationship was governed by any agreement or if any part of the parties' employment relationship was governed by written rules, guidelines, policies, or procedures established by the employer.

Plaintiff objects to the first three interrogatories on grounds “that [they] call[] for a legal conclusion, [they are] compound, and seek[] attorney work product to the extent [they] ask for identification of supporting documents that were identified or prepared by counsel.” (Defendant's Separate Statement for FROGs, Pages 4-6.) Plaintiff also objects to 200.4 for being overbroad, vague, and ambiguous as to the term “governed” and unduly burdensome. (Id., Page 6.)

Defendant argues that the interrogatories are clear, straightforward, and seek information regarding employment, and the objections are meritless because the interrogatories were drafted by the Judicial Council. (Id.)

FROGs. 200.6 seeks information regarding whether Plaintiff and Defendant were in a business relationship other than an employment one.

Plaintiff objects on the grounds that it is vague as to the term “business relationship” and “other than an employment relationship.” (Id., Page 7.)

Defendant provides similar arguments as above.

FROGs. 202.1 and 202.2 seek information regarding whether any adverse employment actions were discriminatory and all facts supporting the contention that Plaintiff was qualified to perform the job she was denied due to unlawful discrimination.

Plaintiff provides similar objections as with FROGs 200.1-200.3. (Id., Page 8.)

Defendant provides similar arguments as FROGs 200.1-200.3.

FROGs. 204.1-204.3 seek information regarding the disability alleged in the pleading, any injury or illness alleged to have arisen out of or in the course of employment, and any communications between Plaintiff and Defendant about the extent of her disability. FROGs. 204.5-204.6 seek information regarding whether Plaintiff needed accommodations to perform any functions of her job position or a need to transfer, and whether this was communicated to Defendant.

Plaintiff objects to the interrogatories as vague and ambiguous, compound, as seeking information protected by the physician patient privilege and the right to privacy, and seeking information protection by attorney client privilege and the work product doctrine. (Id., Pages 9-12.)

Defendant provides similar arguments as FROGs 200.1-200.3.

FROGs 207.2, 208.1, and 209.1 seek information regarding if Plaintiff complained to Defendant about the unlawful conduct alleged in the complaint, if Plaintiff files a claim, complaint, or charge with any governmental agency about the allegations, and if Plaintiff has filed a civil complaint against any employer in the past decade about her employment.

Plaintiff objected to the interrogatories as being compound, seeking information about multiple claims, complaints, or charges. (Id., Pages 13-16.) Plaintiff further objected to 209.1 as being overbroad and unduly burdensome, and seeking personal information about matters unrelated to this case. (Id., Page 16.)

Defendant provides similar arguments as FROGs 200.1-200.3.

FROGs 210.1-210.6 seek information regarding any loss of income, benefits, or earning capacity due to an adverse employment action, like total amount lost, calculation metrics, future loss potential, mitigation efforts, benefit replacement, and new employment. Plaintiff objects to the interrogatories as premature, seeking protected information and expert opinion, compound, and objects to specific terms as being overbroad and vague. (Id., Pages 16-19.)

Defendant provides similar arguments as FROGs 200.1-200.3 Defendant also argues the interrogatories are not premature because Plaintiff has some knowledge as to the information requested. (Id.)

FROGs 212.1-212.7 seek information regarding any physical, mental, or emotional injuries attributed to the adverse employment action, like ongoing complaints, consultations, examinations, or treatments by a health care provider, medications, medical services, or future treatment. Plaintiff objects to the interrogatories as seeking physician-patient privileged information and information protected by Plaintiff's right to privacy. (Id., Pages 20-23.)

Defendant provides similar arguments as FROGs 200.1-200.3. Defendant also argues that Plaintiff placed her emotional injuries at issue by alleging non-economic damages. (Id.)

FROGs 213.1-213.2 seek information regarding other damages attributed to the adverse employment action and supporting documentation.

Plaintiff objects to the interrogatories as vague, ambiguous as to "other damages", compound, and calling for expert opinion. (Id., Pages 23-24.)

Defendant provides similar arguments as FROGs 200.1-200.3. Defendant also argues that the interrogatories do not call for expert opinion because Plaintiff has some knowledge regarding damages she claims she has suffered. (Id.)

FROGs 215.1-215.2 seek information regarding conducted interviews and written or recorded statements obtained by Plaintiff or anyone on her behalf concerning the adverse employment action. FROGs 217.1 seeks information regarding whether any request for admission served with the FROGs is an unqualified admission.

Plaintiff objects to the interrogatories as compound, seeking privileged and private information. (Id., Pages 24-27.) Plaintiff also objects to 217.1 as being premature. (Id., Page 27.)

Defendant provides similar arguments as FROGs 200.1-200.3. Defendant also argues that the interrogatories do not violate third-party privacy rights because it is entitled to identify witnesses with directly relevant information. (Id.)

Willis v Superior Court acknowledges "zones of privacy" regarding third party non-litigants that may warrant issuance of a protective order limiting the information that must be disclosed. (Willis v Superior Court (1980) 112 CA3d 277, 297.) The Willis Court required disclosure of names, addresses, and fee arrangements with certain third party non-litigant clients of the plaintiff in the case while placing limitations on the defendant's and his attorney's use of the information beyond the immediate litigation. (Id. at 297-98.) Following Willis, Courts have analyzed the disclosure of identifying information. Central to the discovery process is the identification of potential witnesses, including their identifying information. (Puerto v. Superior Court (2008) 158 Cal. App. 4th 1242, 1249-50 ["Central to the discovery process is the identification of potential witnesses. 'The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery.' (People v. Dixon (2007) 148 Cal.App.4th 414, 443 . . .)"].) First, the Puerto Court, in relevant part, that "the requested information, while personal, is not particularly sensitive, as it is merely contact information, not medical or financial details, political affiliations, sexual relationships, or personnel information [omitted].

(Id. at 1253-54.) The Puerto Court also commented that it is only under unusual circumstances, such as (1) the information violates the right to privacy and is not necessary to the prosecution of the matter or (2) the information involves the circumstance of true danger, that courts restrict discovery of nonparty witnesses' residential contact information. (Id. at 1254-55.) Though not needed, the Puerto Court also balanced opposing interests. It found that that "the balance of opposing interests tips toward permitting access to relevant information necessary to pursue the litigation" as there is a public interest in facilitating the ascertainment of truth in legal proceedings as well as obtaining just results in public litigation. (Id. at 1256.) As such, the current and former employees in the Puerto case were found to be potential percipient witnesses to the occupational duties of petitioners, the primary issue in this litigation, and as such their locations are properly discoverable. (Id.)

Here, Plaintiff's objections do not hold. No serious invasion of privacy will occur by disclosure of information requested in the form interrogatories approved by the Judicial Counsel.

As analyzed above, this is a Judicial Council approved Form Interrogatory, identifying information is incorporated into the Form Interrogatory, and no serious invasion of privacy will occur by disclosure of that information.

Plaintiff supplies similar boilerplate objections to all identified FROGs. Plaintiff fails to explain how the requested interrogatories seek privileged or confidential information, or what sought information implicates either Plaintiff's or a third parties privacy rights. The Court does not find the FROGs to be vague, ambiguous, overly broad, burdensome, or oppressive.

Plaintiff does not oppose the motion to compel further.

Accordingly, the Court GRANTS the motion and orders Plaintiff to serve further responses to the requests for Form Interrogatories Nos. 200.1-200.4, 200.6, 202.1-202.2, 204.1-204.3, 204.5-204.6, 207.2, 208.1, 209.1, 210.1-210.6, 212.1-212.7, 213.1-213.2, 215.1-215.2, & 217.1 within 30 days of notice of the Court's order.

ii. Application - Special Interrogatories

Defendant contends that all of Plaintiff's objections are meritless, that relevance is broad in discovery, and that the requests seek information from the period of time in which Plaintiff alleges the incident and relevant facts occurred. Defendant contends that Plaintiff served unverified, boilerplate objections to all 21 Special Interrogatories ("SROGs").

Plaintiff does not oppose the motion to compel further.

SROGs Nos. 1-3 are regarding communications between Plaintiff and Defendant, Shenal Chapman, and Audrea Holman from June 26, 2023 through August 31, 2023.

Plaintiff objects stating that the interrogatories are overbroad and unduly burdensome because they seek "every" communication, are duplicative and compound, and the definition of "describe" is vague, unduly burdensome, and unlimited in scope.

First, the Court does not find the interrogatories to be unduly burdensome because they are limited to the 6-week time period identified by Plaintiff in her Complaint and seek information regarding Plaintiff's claims about communication alleged in her Complaint. Second, the Court does not find the interrogatories to be duplicative because each one seeks information regarding communications between different individuals, all whom Plaintiff identified in her Complaint. Lastly, the definition of "describe" asking Plaintiff to describe "in as much detail as possible" the relevant facts does not exceed the scope of permissible discovery given the positions of the parties. Defendant asserts that Plaintiff failed to communicate at all during this time period, while Plaintiff asserts that she did communicate. Thus the substance of any communication is pertinent to the allegations.

Thus, the Motion to Compel Further Responses to Special Interrogatory Nos. 1-3 are GRANTED.

SROGs Nos. 4-7 are regarding information about the contentions made in paragraph 24 & 28 of Plaintiff's Complaint, such as any facts supporting the contentions and the identity of individuals with knowledge as to the contentions.

Plaintiff objects stating that the interrogatories are premature because discovery is ongoing, the phrases “all facts” and “all persons” are overbroad, and SROGs Nos. 4 & 6 seek information protected by the attorney work product doctrine.

First, the Court does not find the interrogatories to be premature because they seek information regarding allegations made in Plaintiff’s complaint. The ongoing nature of discovery is not a valid objection. Second, the Court does not find the terms “all persons” and “all facts” to be overbroad because the interrogatories are logically seeking all relevant information related to Plaintiff’s contentions. Lastly, Plaintiff fails to explain how the requested interrogatories seek privileged or confidential information and has not filed an opposition to shed light on this objection.

Thus, the Motion to Compel Further Responses to Special Interrogatory Nos. 4-7 are GRANTED.

Special Interrogatory Nos. 8 and 9 are requesting information regarding Plaintiff’s response to Defendant’s July 17, 2023 email.

Plaintiff objects stating that the interrogatories assume facts not in evidence and they are vague and ambiguous.

The Court does not find the interrogatories are vague and ambiguous because the plain meaning of “respond” is “to say something in return: make an answer.” (Merriam-Webster’s Dictionary.) Also, the Court finds Plaintiff’s objections the interrogatories “assume facts not in evidence” to be unpersuasive because discovery, which is meant to gather evidence, is ongoing as Plaintiff herself has contended in objections to SROGs 4 & 6. The California Supreme Court concluded that an objection raised to the form of the question like “the question assumes a fact not in evidence” is “for the protections of a witness on oral examination,” not when “the answer is to be made in writing, after due time for deliberation and consultation with counsel.” (West Pico Furniture Co. of Los Angeles v. Superior Court in and for Los Angeles County (1961) 56 Cal.2d 407, 421.)

Accordingly, the Motion to Compel Further Responses to Special Interrogatory Nos. 8 and 9 are GRANTED.

SROGs Nos. 10 and 11 request information about Plaintiff’s cellphone number and service provider during the period between July and August 2023.

Plaintiff objects on the grounds that the interrogatories seek personal and private information, to the extent the information is sought for harassment or invasion of privacy purposes, and to the extent interrogatory No. 11 is “designed to facilitate subpoenas” of Plaintiff’s phone records without notice.

Plaintiff fails to explain how the requested interrogatories seek privileged or confidential information and has not filed an opposition to shed light on this objection. The Court also finds Plaintiff’s subpoena objection to be unpersuasive, because there is no evidence that Defendant will not comply with notice requirements regarding subpoenas for consumer information.

Accordingly, the Motion to Compel Further Responses to Special Interrogatory Nos. 10 and 11 are GRANTED.

SROGs Nos. 12-17 request the identity of third-parties Plaintiff contends Defendant discriminated or retaliated against for taking a medical leave of absence, requesting an accommodation, or for having a disability.

Plaintiff objects that the interrogatories are premature, seek information that is more readily available to Defendant, and implicate third party's privacy rights.

First, the Court does not find the interrogatories to be premature because they seek information regarding contentions made by Plaintiff. The ongoing nature of discovery is not a valid objection, because Plaintiff can state facts based on her current knowledge. Second, Plaintiff fails to explain how the requested interrogatories seek privileged or confidential information and has not filed an opposition to shed light on this objection. The interrogatories only ask Plaintiff to "IDENTIFY" the other alleged employees.

The Motion to Compel Further Responses to Special Interrogatory Nos. 12-17 are GRANTED.

SROGs Nos. 18-21 request training information regarding Plaintiff's contention that Defendant had animus against her for her disability and any employee who suffered from disabilities in 2023, including all supporting facts and identities of individuals with knowledge of said contentions.

Plaintiff objects stating the interrogatories are premature, seek information more readily available to Defendant, and "all facts" and "all persons" are overbroad.

First, the Court does not find the interrogatories to be premature because they seek information regarding contentions made by Plaintiff. The ongoing nature of discovery is not a valid objection, because Plaintiff can state facts based on her current knowledge. Second, Plaintiff fails to explain how the requested interrogatories seek privileged or confidential information and has not filed an opposition to shed light on this objection. Lastly, the Court does not find the terms "all persons" and "all facts" to be overbroad because the interrogatories are logically seeking all relevant information related to Plaintiff's contentions.

The Motion to Compel Further Responses to Special Interrogatory Nos. 18-21 are GRANTED.

The Court GRANTS the Motion to Compel Further Responses to Special Interrogatories, Set One.

III. Requests for Production of Documents

Standard for Compelling Further Responses to Requests for Production ("RPD") – Code of Civil Procedure §2031.310 provides that a party may bring a motion to compel further responses to a request for production of documents, where the demanding party deems any of the following apply: "(1) A statement of compliance with the demand is incomplete; (2) A representation of inability to comply is inadequate, incomplete, or evasive; [and] (3) An objection in the response is without merit or too general." (Code Civ. Proc. §2031.310(a).)

Meet and Confer Requirement – A motion compelling further responses to RPD's must be accompanied by a meet and confer declaration. (Code Civ. Proc. §2031.310(b)(2).) The Court notes that this requirement has been met. (Malter Decl. ¶¶ 7-14; Exh. I.)

Application – The Separate Statement identifies the following disputed RFP Nos.: 1-41.

Plaintiff does not oppose the motion to compel further.

RPD Nos. 1-12 request all documents and electronic data constituting communications, text messages, emails, and voicemail messages between Plaintiff and Defendant, Audrea Holman, and Shenal Chapman from June 15, 2023 to the present.

Plaintiff objects on the basis that the requests are overly broad as to temporal and subject matter scope, unduly burdensome, implicate attorney-client privilege and/or work product doctrine, and duplicative because "communication" encompasses text messages, emails, and voicemails.

The Court does not find the temporal scope to be overbroad. The Court finds the RPDs not burdensome or overbroad as to subject matter.

The Court does not find these documents and electronic data necessarily to be protected under attorney client privilege and/or attorney work product doctrine as Plaintiff has not provided sufficient factual information for other parties to evaluate the merits of that claim as required by Code of Civil Procedure section 2031.240. (Code Civ. Proc. §2031.240. subd. (c)(1) ["If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log].) That said, the Court does not find a waiver of any privilege. If, in providing further responses, Plaintiff identifies documents that are in fact subject to the attorney-client privilege and/or attorney work product doctrine, Plaintiff shall identify such materials on a privilege log that complies with CCP section 2031.240. This ruling applies to all of the responses that are the subject of these motions.

The Court does find RPDs Nos. 4-12 to be duplicative of RPDs Nos. 1-3, because "communications" as defined in the request encompasses text messages, emails, and voicemail messages: "means any and all inquiries, discussions, conferences, conversations, negotiations, agreements, meetings, interviews, telephone conversations, letter correspondence, notes, telegrams, facsimiles, electronic mail, text messages, memoranda, or other forms of communication, including but not limited to both oral and written communication. As used herein, the term "COMMUNICATION" includes "ELECTRONIC DATA", as that term is defined in paragraph 5, below." (Malter Decl., Exh. G.)

Accordingly, the Motion to Compel Further Responses to RPD Nos. 1-3 are GRANTED. The Motion to Compel Further Responses to RPD Nos. 4-12 are DENIED as duplicative.

RPD Nos. 13-15 seek all documents and electronic data that refers or relates to Plaintiff's contentions in paragraphs 24 and 28 of the complaint and any communications that Plaintiff sent to Defendant in response to the July 17, 2023 email.

Plaintiff objects to the requests as overbroad, unduly burdensome, and duplicative. Plaintiff also objects to RPD No. 15 as assuming facts not in evidence.

The Court finds the RPDs not burdensome or overbroad as to subject matter. The Court also does not find the RPDs to be duplicative of RPD Nos. 1-12 because the latter seek information on communications between Plaintiff and the named individuals, which is narrower than the formers' request for information referring or relating to Plaintiff's contentions. RPD Nos. 13-15 are not necessarily seeking only communications between those individuals but rather all documents and electronic data that refer or relate to Plaintiff's contentions and communications.

Also, the Court finds Plaintiff's objections that RPD No. 15 "assume facts not in evidence" to be unpersuasive and evasive because discovery, which is meant to gather evidence, is ongoing as Plaintiff herself has contended in objections to SROGs 4 & 6.

Accordingly, the Court GRANTS the Motion to Compel Further Responses for RPD Nos. 13-15.

RPD Nos. 16-20 request all documents and electronic data referring or relating to any source of income received since July 26, 2023, mitigation efforts, new employment efforts, contended economic damages, and any source of benefits received since employment was terminated by Plaintiff.

Plaintiff objects to the requests as overbroad and burdensome, implicating her right to privacy, and duplicative.

The Court agrees with Plaintiff that the scope in RPD Nos. 16 and 20 are overbroad as to "any source" and limits the scope to income and benefits that are relevant to Plaintiff's damages claims and this litigation.

The Court does not find the temporal scope to be overbroad.

The Court does not find the RPDs to be duplicative because they seek documents touching upon specific issues. The Court also does not at this time find these documents and electronic data to be protected under physician-patient privilege as Plaintiff has not provided sufficient factual information for other parties to evaluate the merits of that claim as required by Code of Civil Procedure section 2031.240. (Code Civ. Proc. §2031.240. subd. (c)(1) ["If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log].) Plaintiff has not filed an opposition to this motion. All that said, the Court does not find a waiver of any privilege. If, in providing further responses, Plaintiff identifies documents that are in fact subject to the physician-patient privilege, Plaintiff shall identify such materials on a privilege log that complies with CCP section 2031.240. This ruling applies to all of the responses that are the subject of these motions.

Accordingly, the Court GRANTS the Motion to Compel Further Responses for RFP Nos. 16-20 but narrows the requests to income and benefits that are relevant to Plaintiff's damages claims and litigation.

RPD No. 21 seeks documents and electronic data that refer or relate to any non-economic damages Plaintiff alleges to have suffered in her complaint. RPD Nos. 22 and 23 seek documents, communications, and electronic data that refer or relate to

any medical treatment Plaintiff has sought or received related to any physical or emotional distress Plaintiff contends she has suffered due to Defendant's alleged unlawful acts or omissions.

Plaintiff objects to the requests as overbroad, vague, and implicating Plaintiff's privacy rights under Evidence Code sections 994 and 1014.

The Court finds the RPDs not burdensome or overbroad as to subject matter. Also, by alleging non-economic damages in her complaint and alleging emotional distress and physical injuries and reactions, Plaintiff has placed the matters at issue. The Court does not find these documents and electronic data to be protected under physician-patient privilege as Plaintiff has not provided sufficient factual information for other parties to evaluate the merits of that claim as required by Code of Civil Procedure section 2031.240. (Code Civ. Proc. §2031.240. subd. (c)(1) ["If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log].) Plaintiff has not filed an opposition to this motion. That said, the Court does not find a waiver of any privilege. If, in providing further responses, Plaintiff identifies documents that are in fact subject to the physician-patient privilege, Plaintiff shall identify such materials on a privilege log that complies with CCP section 2031.240. This ruling applies to all of the responses that are the subject of these motions.

As such, the Motion to Compel Further Responses to RPDs Nos. 21-23 are GRANTED.

RPD Nos. 24 and 25 seek documents, communications, and electronic data that refer or relate to any medical treatment Plaintiff received that required her to take a disability leave in the summer of 2023 and any doctor's recommendations that Plaintiff be provided accommodations or work restrictions while employed by Defendant.

Plaintiff objects to the requests as overbroad and implicating Plaintiff's privacy rights under Evidence Code sections 994 and the California Constitution.

The Court finds the RPDs not overbroad as to subject matter because the requests clearly state they are seeking documents related to the cause of her disability leave, not unrelated conditions. The Court also does not find these documents and electronic data to be protected under physician-patient privilege as Plaintiff has not provided sufficient factual information for other parties to evaluate the merits of that claim as required by Code of Civil Procedure section 2031.240. (Code Civ. Proc. §2031.240. subd. (c)(1) ["If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log].) Plaintiff has not filed an opposition to this motion.

As such, the Motion to Compel Further Responses to RPDs Nos. 24 and 25 are GRANTED.

RPD No. 26 seeks documents, communications, and electronic data that refer or relate to communications between Plaintiff and anyone other than counsel regarding her allegations.

Plaintiff objects to the requests as overbroad, unduly burdensome, chilling, not reasonably calculated to lead to the discovery of admissible evidence, and implicating Plaintiff's privacy rights under the California Constitution.

The Court finds the RPD to be unduly burdensome and overbroad. The request is not narrow in scope because it seeks any and all documents and communication between Plaintiff and anyone else, which can be an almost limitless number of

documents. Defendant has not provided a sufficient argument as to how the documents sought are narrow in scope.

As such, the Motion to Compel Further Responses to RPD No. 26 is DENIED.

RPD No. 27 seeks all documents, communications, and electronic data that Plaintiff identified in her responses to the FROGs.

Plaintiff objects to the requests as premature, vague, ambiguous, and duplicative.

The Court finds the RPD is not premature because the responses to the FROGs have been completed. The Court also finds the request is not ambiguous or vague because it clearly seeks documents identified in Plaintiff's responses to the FROGs. Lastly, the Court does not find the request to be duplicative.

As such, the Motion to Compel Further Responses to RPD No. 27 is GRANTED.

RFP Nos. 28-31 seek to discover all documents, communications, and electronic data that refer or relate to electronic content created by Plaintiff and posted on her social media accounts referencing Defendant, to notes or other writings Plaintiff prepared "memorializing" Plaintiff's experience at Baby Steps and communications with Defendant between June 26, 2023 and August 16, 2023 (excluding counsel directed notes), and to entries Plaintiff made into a journal or diary that refer or relate to Plaintiff's employment.

Plaintiff objects stating the requests are overbroad, not limited to entries about events giving rise to this lawsuit, and implicate her privacy rights. Plaintiff also objected to RPD Nos. 29 and 30 as implicating the attorney work product doctrine.

The Court does not find these documents and electronic data to be protected under the attorney work product doctrine as Plaintiff has not provided sufficient factual information for other parties to evaluate the merits of that claim as required by Code of Civil Procedure section 2031.240. (Code Civ. Proc. §2031.240. subd. (c)(1) ["If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log].) Plaintiff has not filed an opposition to this motion, and the requests state exclusion of counsel directed notes.

The Court also does not find Plaintiff's right to privacy argument persuasive because social media accounts are public, and the RPDs are not seeking access to the accounts, but rather information relating to posted content. Plaintiff fails to explain how the RPDs seek privileged or confidential information and had not filed an opposition to expand upon this argument. The Court does not find the RPD to be overbroad in terms of subject scope.

The Court does agree that the time limit is vague as to RPD Nos. 28 and 29, and limits the scope to documents from June 15, 2023 to the present.

Accordingly, the Motion to Compel Further Responses for RPD Nos. 28-31 is GRANTED.

RPD No. 32 seeks all documents, communications, and electronic data that refer or relate to any litigation or threatened litigation between Plaintiff and other employers she worked for or applied to in the past 10 years.

Plaintiff objects to the request as overbroad temporally and as to "threatened litigation," irrelevant, not reasonably calculated to lead to admissible evidence, and inadmissible character evidence under Evidence Code section 1101.

While the request is similar to FROG No. 209.1, which is drafted by the Judicial Council, the Court limits the scope as to only filed civil actions against employers Plaintiff worked for to mirror the FROG.

Accordingly, the Motion to Compel Further Responses to RPD No. 32 is GRANTED.

RPD Nos. 33-37 seeks all documents that refer or relate to Plaintiff's contention that Defendant has discriminated against other employees based on their disabilities, age, and/or sex, or retaliated based on their disability.

Plaintiff objects to the requests as premature, implicating the privacy rights of third parties, and as overbroad. Plaintiff also objects to RPD No. 35 as identical to No. 34.

The Court does find RPD Nos. 34 and 35 to be identical.

The Court also does not find Plaintiff's right to privacy argument persuasive because Plaintiff fails to explain how the RPDs seek privileged or confidential information and has not filed an opposition to expand upon this argument. The Court also does not find the requests to be overbroad or premature.

Accordingly, the Court GRANTS the motion to compel further for RPD Nos. 33, 34, 36, and 37. The Court DENIES the motion to compel further for RPD No. 35 for being duplicative.

RPD No. 38 seeks Plaintiff's monthly statements issued by her cellphone provider reflecting her incoming and outgoing calls and text messages between June-August 2023. The request allows Plaintiff to redact all calls and texts that are not with Defendant.

Plaintiff objects as it finds the RPD to invade her right to privacy and unduly burdensome.

The Court agrees with Plaintiff and finds the request to implicate her privacy rights. The Court also finds it to be unduly burdensome for Plaintiff to sift through the records to redact all other calls and texts when the request could have been limited to just production of Plaintiff's call logs and text messages with Defendant.

Accordingly, the Court DENIES the motion to compel further for RPD No. 38.

RPD Nos 39-41 seek all documents and electronic data supporting Plaintiff's contention that Defendant had animus and/or retaliatory animus towards her because of her disability.

Plaintiff objects to RPD Nos. 40 and 41 as being identical to RPD No. 39, as the distinction between animus and retaliatory animus is vague and ambiguous. Plaintiff also objects to the requests as overbroad.

The Court finds RPD No. 39 and 40 to be identical. The Court also agrees with Plaintiff that the difference between animus and retaliatory animus is ambiguous and not clearly defined, making RPD No. 39 and 41 duplicative.

However, the Court does not find RPD No. 39 to be overbroad or duplicative of other requests.

Accordingly, the Court GRANT the motion as to RPD No. 39, and DENIES as to RPD Nos. 40-41.

The Court GRANTS the Motion to Compel Further Responses as to RPD Nos. 1-3, 13-25, 27-34, 36-37, and 39.

The Court DENIES the Motion to Compel Further Responses as to RPD Nos. 4-12, 26, 35, 38, 40-41.

Plaintiff is to serve their further responses to the Requests for Production within 30 days of notice of the Court's order.

IV. Requests for Admissions

Standard for Compelling Further Responses to Requests for Admissions ("RFA") – Code of Civil Procedure §2033.290 provides that a party may bring a motion to compel further responses to a request for admissions if the requesting party deems that an answer to a request is evasive or incomplete and/or an objection is without merit or too general (Code Civ. Proc. §2033.290(a).)

Meet and Confer Requirement – A motion compelling further responses to RFAs must be accompanied by a meet and confer declaration. (Code Civ. Proc. §2033.290(b)(1).) The Court notes that this requirement has been met. (Malter Decl. ¶¶ 7-14; Exh. I.)

Application – The Separate Statement identifies the following disputed RFA Nos.: 1-12.

Plaintiff does not oppose the motion to compel further.

RFA No. 1 requests Plaintiff admit that she did not communicate with Defendant on June 27, 2023.

Plaintiff objects on the basis that the request seeks a negative admission and is unduly burdensome.

The Court does not find the request to be burdensome because the date is relevant to Plaintiff's allegation in the complaint. The Court also does not find the request shifts the burden of proof and finds the objection to be unpersuasive.

Accordingly, the Motion to Compel Further Responses to RFA No. 1 is GRANTED.

RFA Nos. 2-4 request Plaintiff admit that she did not initiate communication or have a verbal communication with Defendant on July 10, 2023, and Defendant left her a voicemail on the same day.

Plaintiff objects on the basis that the requests seek a negative admission, are vague, and assume that a voicemail was left and successfully delivered to her voicemail system.

The Court does not find the term "initiate" to be vague because the common definition is "to cause or facilitate the beginning of: set going." (Merriam-Webster Dictionary.) The Court finds the negative admission and assumption objections to be unpersuasive because if the voicemail was not left successfully, then the response would reasonably be "Deny." Pursuant to Code of Civil Procedure section 2033.220, subdivision (b), Plaintiff needs to admit, deny, or specify lack of sufficient information or knowledge as to the matter involved in the request.

Accordingly, the Motion to Compel Further Responses to RFA Nos. 2-4 are GRANTED.

RFA No. 5 requests Plaintiff admit that she did not communicate with Defendant on July 22, 2023.

Plaintiff objects on the basis that the request seeks a negative admission.

The Court finds the objection to be unpersuasive as explained above.

Accordingly, the Motion to Compel Further Responses to RFA No. 5 is GRANTED.

RFA Nos. 6, 8, and 10 request Plaintiff admit that she received emails on July 17, 2023, July 24, 2023, and July 26, 2023, all attached as Exhibits A, B, and C to the request.

Plaintiff objects on the basis that the requests are compound, assume facts not established, improperly seek negative admissions, and are overbroad and unduly burdensome.

The Court finds the objections as to negative admissions to be unpersuasive as explained above. Plaintiff's complaint references multiple times an email on July 26, 2023 containing her termination letter. The Court does not find the requests to be burdensome or overbroad because they request information during the relevant time period alleged in Plaintiff's complaint.

Accordingly, the Motion to Compel Further Responses to RFA Nos. 6, 8, and 10 are GRANTED.

RFA Nos. 7, 9, and 11 request Plaintiff admit that she did not communicate with Defendant after receiving emails on July 17, 2023, July 24, 2023, and July 26, 2023, all attached as Exhibits A, B, and C to the request, until Plaintiff's email on August 16, 2023.

Plaintiff objects on the basis that the requests are compound, assume facts not established, improperly seek negative admissions, and are overbroad and unduly burdensome.

The Court finds the objections to be unpersuasive as explained above as to RFA Nos. 6, 8, and 10. Plaintiff's complaint alleges that she returned to work on August 16, 2023, after medical leave, and was instructed to check her email when she discovered a letter dated July 26, 2023. (Compl., ¶¶ 27-30.)

Accordingly, the Motion to Compel Further Responses to RFA Nos. 7, 9, and 11 are GRANTED.

RFA No. 12 requests Plaintiff admit that she did not exchange any text messages with Defendant from June 26, 2023 to August 16, 2023.

Plaintiff objects on the basis that the request improperly seek negative admissions, is overbroad and unduly burdensome, and is vague as to "text messages."

The Court finds the objections as to negative admissions to be unpersuasive as explained above. The indicated time period is the relevant time period alleged in the complaint. In addition, the Court does not find "text messages" to be vague as the common definition is "a short message sent electronically usually from one cell phone to another." (Merriam-Webster Dictionary.)

Accordingly, the Motion to Compel Further Responses to RFA No. 12 is GRANTED.

The Court GRANTS the Motion to Compel Further Responses as to RFA Nos. 1-12.

Plaintiff is to serve their further responses to the Requests for Admissions within 30]days of notice of the Court's order.

V. Privilege Assertions

Plaintiff at various points has asserted attorney-client, attorney work product, physician-patient, and other privileges. None of those assertions of privilege are made with the detail required by law. Nonetheless, the Court does not find at this time a waiver of privilege. In responding to the discovery that is the subject of these motions, if Plaintiff withholds any information or document on the basis of a privilege, Plaintiff must fully comply with Code Civ. Proc. §2031.240. subd. (c)(1), including the provision of a detailed privilege log that identifies the document or information withheld, the parties to the communication, the date of the communication, and the basis for the assertion of the privilege that provides information sufficient for the Court to rule on the assertion. Failure to fully comply will be deemed a waiver of the privilege.

VI. Monetary Sanctions

It appears Defendant is requesting monetary sanctions of \$3,162.50 [5.5 hrs @ \$575.00] for all four motions to compel further as they were brought because Plaintiff "failed to serve responses to the Discovery on or before the January 28, 2026 deadline. Plaintiff also failed to communicate any explanation for her failure to timely serve responses to the Discovery or request an extension, thus necessitating this Motion." (Malter Decl., ¶ 15.)

It is mandatory that the court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310(h).)

In addition, it is mandatory that the court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2033.290(d).)

Lastly, it is mandatory that the court "impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposed a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300(d).)

The Court reduces the attorney hours to 4 hours because no opposition was filed. Accordingly, the Court GRANTS sanctions against Plaintiff and her counsel of record in the reduced sum of \$2,300.

VII. Conclusion

Defendant Baby Steps Infant Development Program's Motion to Compel Plaintiff Marlene Mainella's Further Responses to Requests to Form Interrogatories – Employment Law is GRANTED.

Defendant Baby Steps Infant Development Program's Motion to Compel Plaintiff Marlene Mainella's Further Responses to Special Interrogatories, Set One is GRANTED.

Defendant Baby Steps Infant Development Program's Motion to Compel Plaintiff Marlene Mainella's Further Responses to Request for Production of Documents, Set One is GRANTED as to Request for Production Nos. 1-3, 13-25, 27-34, 36-37, and 39; DENIED as to Request for Production Nos. 4-12, 26, 35, 38, 40-41.

Defendant Baby Steps Infant Development Program's Motion to Compel Plaintiff Marlene Mainella's Further Responses to Requests for Admissions is GRANTED.

Plaintiff is to serve their further responses to the requests, including any privilege log, within 30 days of notice of the Court's order.

The Court GRANTS sanctions against Plaintiff and her counsel of record in the reduced sum of \$2,300.